



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 9, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202203051 (Incident Date: May 13, 2022) regarding Captain Sean Claxton, Tax No. 943092 (DADS No. 2023-29096)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that no disciplinary action is warranted in connection with the single allegation that Captain Claxton issued an unlawful summons to the complainant.

In this matter, Captain Claxton was assigned as the Duty Captain and responded to the 90th Precinct to investigate an allegation of excessive force regarding an individual allegedly being struck by a marked police vehicle. The body worn camera shows the individual approaching the officer in an aggressive manner, with his arms clenched, stepping within approximately six (6) inches of the officer's face and yelling "You hit me, my man!" The officer then pushed the individual back and the individual lunges forward, with both arms tensed in front of him. The individual was handcuffed and transported to the 90th Precinct. After conducting an investigation, Captain Claxton directed the complainant to be released with a summons for disorderly conduct. In this matter, Captain Claxton exercised his discretion to issue a summons, in lieu of arrest. The Police Commissioner has determined the officers lawfully took the individual into custody and Captain Claxton rightfully exercised his discretion to release the individual from the stationhouse with a criminal court summons. In addition, the Police Commissioner determined the individual's conduct amounted to harassment, which would have justified a summons being issued for New York State Penal Law §240. 26 (1) (Harassment in the Second Degree).

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Therefore, based on the foregoing, Captain Claxton will receive no disciplinary action for the alleged violation of issuing an unlawful summons. The Police Commissioner has determined that at no point did Captain Claxton take enforcement action involving an abuse of discretion or authority, as alleged by CCRB.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony Marino', with a large, sweeping flourish extending to the right.

Anthony Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office